

B.16

Policy/Guideline Title:	Trade Union / Staff Organisation Recognition Agreement		
Executive Summary:	The purpose of this Agreement is to determine Trade Union and staff organisation recognition and representation arrangements within Kettering General Hospital NHS Foundation Trust based on a partnership approach to industrial relations.		
Supersedes:	Version 3		
Description of Amendment(s):	No Change		
This policy will impact on:			
Financial Implications:			
Policy Area:	People Division	Approval Date:	April 2023
Version Number:	4	Review Date:	January 2026
Issued By:	Kathryn Large, Senior HR Business Partner	Expiry Date:	April 2026
Author:	Michelle O’Sullivan, Senior HR Advisor	Impact Assessment Date:	
APPROVAL RECORD			
	Committees / Group	Date	
Consultation:	JCNC Operational Group	28 th March 2023	
Approved by Director:	Catherine Wills, Director of People	28 th March 2023	
Ratified by:	Operational Management Group	20 th April 2023	
Received for Information:			

B.16: Trade Union/Staff Organisation Recognition Agreement



Compassion



Accountability



Respect



Integrity



Courage

Table of Contents

1. Introduction	3
2. Purpose	3
3. Responsibilities	4
4. Definitions	4
5. Negotiation	5
6. Consultation	5
7. Disclosure of Information	5
8. Disputes	6
9. Representation	6
10. Functions of Representatives	6
11. Negotiation and Consultation Procedures	7
12. Check-Off System	8
13. Interpretation, Variation and Termination	8
14. Training	9
15. Monitoring Compliance with the Document	9
16. References	9

Appendices

1. Introduction

Kettering General Hospital NHS Foundation Trust recognises that its primary objective of delivering the best possible healthcare to patients can only be achieved through an informed, involved and committed workforce.

The Trust recognises that an important pre-requisite of this is the existence of effective arrangements for consultation and negotiation on all matters affecting staff. The Trust believes that this can best be achieved by a collective approach which recognises specified representative trade unions/staff organisations, as defined in the agreement, for the purposes of consultation and negotiation on behalf of staff groups within the Trust.

The Trust believes that recognising fully representative trade unions/staff organisations leads to the promotion of good employee relations and will therefore encourage its employees to belong to appropriate trade unions/staff organisations.

2. Purpose

Delivering the highest quality of care to our patients is the top priority of the Trust and maintaining effective employee relations is a key factor in achieving this goal. The purpose of this Agreement is to determine Trade Union and staff organisation recognition and representation arrangements within Kettering General Hospital NHS Foundation Trust based on a partnership approach to industrial relations. This ensures the systematic and routine involvement of staff and their trade union representatives at all levels in shaping the service and in the decision-making process at all stages which affects their working lives and the delivery of healthcare.

This policy applies equally to all staff across the Trust in accordance with the relevant Terms and Conditions of Service, including Agenda for Change and Medical and Dental staff.

The Trust shall recognise, for the purposes of consultation and negotiation, on matters outlined in Sections 7 and 8 respectively of this document, the following trade unions/organisations:

- UNISON
- British Association of Occupational Therapists (BAOT)
- Royal College of Nursing (RCN)
- Royal College of Midwives (RCM)
- Society of Radiographers (SoR)
- UNITE
- British Medical Association (BMA)
- British Dental Association (BDA)
- Chartered Society of Physiotherapists (CSP)
- Guild of Healthcare Pharmacists

Whilst for the purposes of conferring and continuing recognition for negotiation and consultative purposes no specific requirement for size of trade union/staff

organisation membership is defined, each recognised body shall be expected to remain acceptably representative of the staff group(s) covered.

Recognised trade unions/staff organisations shall produce evidence of membership upon request.

3. Responsibilities

Responsibilities of the Trust Board

The Trust Board must:

- Ensure that trade unions/staff organisations are properly informed, given adequate facilities and operate within an agreed procedural framework to allow trade unions/staff organisations to function effectively. The Trust Board will work with the recognised trade unions/staff organisations to this end.

Responsibilities of Trade Unions/Staff Organisations

Trade Unions/Staff Organisations must:

- Represent the interests of their members employed by the Trust.
- Work for improved conditions of employment.

Responsibilities of Management

Management must:

- Keep employees directly informed of matters concerning the activities of the Trust, but this does not obviate the requirement under this agreement to negotiate and consult through the recognised machinery on matters covered by this agreement.
- Manage the activities of the Trust according to objectives set by the Trust.

4. Definitions

Recognised Trade Union

Formally recognised by the Trust and responsible for representing the interests of their members and to work for improved conditions of employment.

Joint Consultation and Negotiation Committee (JCNC)

Consists of both management and staff side representatives. The committee discuss and consult on proposals to alter practice and conditions.

Representation

The Trust recognises accredited representatives, branch officials and full-time officials of the trade unions/staff organisations who are employees of the Trust. They will represent the views and interests of their members as appropriate.

Negotiation

For the purposes of reaching agreement and avoiding disputes. The scope of negotiation shall be those areas defined in S.178 of the Trade Union and Labour Relations (Consolidation) Act 1992.

Consultation

The exchange of views based on the general principle that a mere passage of information is not consultation. Consultation involves an opportunity to influence decisions and their application. It is best conducted when some attention has been given to alternatives, but they have not taken their final form.

5. Negotiation

The Trust recognises the trade unions/staff organisations listed in paragraph 3 as representing, as appropriate, separately or collectively, the interests of their members within the scope of this agreement on the following matters:

- a) terms and conditions of employment, or the physical conditions in which any workers are required to work;
- b) engagement or non-engagement, or termination or suspension of employment or the duties of employment, of one or more workers;
- c) allocation of work or the duties of employment between workers or groups of workers;
- d) matters of discipline;
- e) a worker's membership or non-membership of a trade union;
- f) facilities for officials of trade unions; and
- g) machinery for negotiation or consultation, and the procedures relating to any of the above matters, including the recognition by employers or employers' associations of the right of a trade union to represent workers in such negotiation or consultation or in the carrying out of such procedures.

6. Consultation

Consultation should cover:

- a) strategic planning decisions, including the allocation of resources which have staffing implications;
- b) consequential administrative operational decisions, especially those likely to affect the job prospects of job security of particular groups or occupations;
- c) all aspects of the immediate job environment, plus those parts of the individual employment relationship not subject to collective bargaining.

7. Disclosure of Information

This should be in accordance with Kettering General Hospital NHS Foundation Trust's agreement on Disclosure of Information and the ACAS Code of Practice.

8. Disputes

In the event of a failure to agree on either the interpretation of this agreement or the wish of either party to change the terms of the agreement, then the Trust's Grievance Procedure shall apply.

9. Representation

The Trust agrees to recognise accredited representatives, branch officials and full-time officials of the trade unions/staff organisations listed at paragraph 2.

Accredited representatives must be employees of the Trust.

The identification of accredited representatives, their numbers and constituencies shall be notified to Trust management with a view to obtaining agreement. It is accepted that agreement will not be unreasonably withheld.

Trade unions/staff organisations shall agree to provide representatives with written credentials and notify management of those representatives and their constituencies.

Facilities for recognised trade unions/staff organisations shall be in accordance with the Kettering General Hospital NHS Foundation Trust's Facilities Agreement.

There shall be no disciplinary action taken against elected representatives of any trade union/staff organisation until discussions have taken place with the full-time officer of the trade union/staff organisation concerned.

10. Functions of Representatives

The Trust and the trade unions/staff organisations recognise that the industrial relations functions of representatives and officials are important responsibilities in addition to their duties as employees of the Trust. Their functions and responsibilities include the following:

- a) To be responsible to, and for, a particular group of members within a particular constituency in accordance with the rules and policies of their organisation;
- b) To undertake industrial relations duties to be consulted and to negotiate within the policies of the union/staff organisation on behalf of the constituency. The issues may include members problems at work, grievances, discipline, equal opportunities, service conditions on any matter listed in Section 7 and 8 of this agreement (in accordance with agreed policies and procedures);
- c) To seek full trade union/staff organisation membership amongst all appropriate employees in the constituency;
- d) To communicate with members and on behalf of the constituency to communicate with departmental or Trust management with the consultation/negotiating machinery and with the relevant union bodies;
- e) Representing as appropriate, the trade union/staff organisation in the joint negotiating or consultative machinery at local, regional or national level;

- f) Meeting with other representatives or officials or full-time trade union officers on matters covered by this agreement;
- g) Attendance at meetings of the appropriate trade union/staff organisation on which the person is a representative or of which he/she is an official, e.g. branch or branch committee meetings;
- h) To seek to ensure that local, regional or national agreements are adhered to at constituency and departmental level;
- i) To organise meetings of members during working hours with no loss of earnings and in accordance with the provision of the Time Off Facilities Agreement;
- j) The trust and trade unions/staff organisations also recognise that, in addition to industrial relations functions, it is in the interests of representatives or officials to participate, as appropriate, in other activities of the trade union/staff organisation such as annual conferences or regional meetings/training;
- k) Representing the trade unions/staff organisations, as appropriate, on external bodies such as committees or working parties within the official trade union/staff organisation structure;
- l) Holding office, as appropriate, on official bodies of the trade union/staff organisation;
- m) The provision by the Trust of facilities to carry out these functions is covered by the Trust's Facilities Agreement.

11. Negotiation and Consultation Procedures

Consultation and Negotiation

A joint consultation and negotiation committee (JCNC) shall be established. The scope of the JCNC shall be Trust-wide consultation and negotiated on:

- a) those matters identified as being the subject matter of consultation as listed in paragraph 6;
- b) those matters identified as being the subject matter of negotiation as listed at paragraph 5 – but only where the intention is that the subject(s) under negotiation shall apply equally to all, or exceptionally the majority, of the major occupational staff groups. Again exceptionally, any matter whatever the scope of its application, which would normally be negotiated within the negotiating committees can be dealt with in the JCNC by joint agreement of the parties;
- c) the negotiating groups are autonomous and matters within their remit do not have to be ratified by the JCNC. Where, however, issues have been agreed as being appropriately dealt with by the JCNC, decisions of that group are binding upon the negotiating committees;
- d) the management side shall normally comprise:
 - Director of People
 - Deputy Director of Human Resources & Organisational Development
 - Director of Finance
 - Chief Operating Officer
 - Chief Executive has an open invitation to attend*
- e) the staff side shall comprise, in addition to a staff side chair and secretary, one member from each recognised trade union/staff organisation;

- f) full-time officers of recognised trade unions/staff organisations shall be eligible to attend in an ex officio capacity. It is the understood intention that the numbers of full-time officers attending any one meeting shall be kept within reasonable remits;
- g) the JCNC may, by agreement of both sides, co-opt for discussion on any part of its agenda such persons as may serve the purposes of the JCNC. Co-opted members do not constitute part of the quorum (see paragraph i);
- h) the JCNC may establish such standing special or sectional subcommittees as may be considered necessary, e.g. an HR policy subcommittee. Any decisions made by a sub-committee shall normally be ratified by the full JCNC before implementation;
- i) a quorum of the JCNC and its sub-committees shall consist of no less than 50% of the persons entitled to be present on each side. Nominated deputies will be considered as part of the quorum as appropriate.
- j) meetings of the full JCNC shall be not less than four times a year. Special meetings can be held by agreement. A minimum of 10 working days' notice should be given of any special meeting. Servicing of meetings shall be the responsibility of the management side.

Executive Directors, Associate Medical Directors, Clinical Directors (in respect of that element of their remuneration which is additional to their normal consultants contract) and all staff employed on non-Agenda for Change management contracts shall have terms and conditions of service that are NOT determined by collective bargaining. Such staff shall however retain individual representational rights for such as grievance and disciplinary matters.

12. Check-Off System

A check-off system will operate whereby the Employer will deduct Union subscriptions from the salaries of Union members and the Employer will pay these deductions directly to the relevant Union each month with a schedule of payment, with a 0.5% charge for processing the subscriptions. This charge will be subject to regular review. Individual members will authorise deductions in writing, appropriate forms will be provided by Union Representatives.

13. Interpretation, Variation and Termination

Any dispute as to the interpretation of this agreement shall be referred, in the first instance, to the joint secretaries and if agreed by them, ratified by the appropriate negotiating committee or consultation committee. In the event of a failure to agree, the Trust's Grievance Procedures shall apply.

Variation to this agreement shall be by negotiation.

The agreement can be terminated by either side giving 6 months' notice in writing.

The agreement is not intended to be legally enforceable by either side and is binding in honour only.

14. Training

There is an expectation that all employees of the Trust are responsible for ensuring their own individual awareness of this agreement.

15. Monitoring Compliance with the Document

Monitoring Compliance					
Process to be used for monitoring e.g. audit	Responsible individual / committee for carrying out monitoring	Frequency of monitoring	Responsible individual / committee for review the results	Responsible individual / committee for developing action plan	Responsible individual / committee for monitoring action plan
Compliance with legislation and JCNC attendance (80% of scheduled meetings are quorate) – JCNC meetings and attendees	Head of People Partnering	Annually	JCNC	Head of People Partnering	JCNC and Trust Board

16. References

ACAS Code of Practice
 NHS Employers
 Trade Union and Labour Relations (Consolidation) Act 1992

Signed on behalf of the Trade Unions/Staff Organisations:

UNISON

British Association of Occupational Therapists (BAOT)

Royal College of Nursing (RCN)

Royal College of Midwives (RCM)

Society of Radiographers (SoR)

UNITE

British Medical Association (BMA)	
British Dental Association (BDA)	
Chartered Society of Physiotherapists (CSP)	
Guild of Healthcare Pharmacists	
Signed on behalf of Kettering General Hospital NHS Foundation Trust:	